

#	Case Name	Tentative
		"provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (<i>New York Times Co. v. Superior Court</i> (2005) 135 Cal.App.4th 206, 212; see also <i>Garcia v. Hejmadi</i> (1997) 58 Cal.App.4th 674, 690 ["strict requirement of diligence" for reconsideration motions].) Defendant shall give notice of this ruling.
55.	Baca v. Baca 2026-01546605	Defendant Carey M. Baca's motion to stay or dismiss this action for inconvenient forum pursuant to C.C.P. § 418.10(a)(2) and § 410.30 is DENIED. The alternative request under C.C.P. § 430.10(c) is GRANTED in part. Defendant's request under C.C.P. § 418.10 is DENIED as defendant fails to explain how proceeding with this action in this court would be an unjust or unfair. The burden of proof is on defendant as the moving party. <i>Stangvik v. Shiley Inc.</i> (1991) 54 Cal. 3d 744, 751. The court assumes, without deciding, that Nevada could be a suitable forum. Defendant must also show that the private interests of the litigants and the public interests also favor defendant. Defendant fails to make this showing. First, "plaintiff's choice of a forum should rarely be disturbed unless the balance is strongly in favor of the defendant." <i>Id.</i> at 754. "[P]laintiff's choice of forum is presumed to be convenient and [] a state has a strong interest in assuring its own residents an adequate forum for the redress of grievances." <i>Id.</i> at 754-755. Defendant has not presented evidence addressing these criteria, other than (1) defendant's residence is Nevada; and (2) there is another action currently pending in Nevada that involves some but not all of the claims asserted in the current action. Defendant's motion pursuant to C.C.P. § 418.10 is therefore denied. And based on the same rationale, the motion pursuant to § 410.30 is also DENIED. However, the court GRANTS defendant's motion pursuant to C.C.P. § 430.10(c) and STAYS this litigation. The Nevada action and the current action involve the same premise: allegations that defendant created a fraudulent or unenforceable power of attorney in June 2023. (Compl. at ¶ 17; Exh. E ¶ 20). Both the Nevada action and the current action require two different courts to determine the validity of the June 2023 power of attorney, and seek remedies that would flow therefrom. The Nevada action (filed in February 2024) and the current action (filed in February 2026) involve exclusive concurrent jurisdiction analysis. "The established rule of exclusive concurrent jurisdiction provides that where two or more courts

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		possess concurrent subject matter jurisdiction over a cause, the court that first asserts jurisdiction assumes it to the exclusion of all other courts. In essence, the rule renders concurrent jurisdiction exclusive with the first court." <i>County of Siskiyou v. Superior Court</i> (2013) 217 Cal. App. 4th 83, 89. Section 430.10(c) allows for a demurrer when "[t]here is another action pending between the same parties on the same cause of action." While the Nevada action and the current action seek some different remedies, the disputed contention is identical: the validity of the June 2023 power of attorney. Plaintiffs do not dispute this. Rather, plaintiffs assume that the Nevada action will reach its conclusion prior to any decision by this court: "[W]e will not see a situation in which this Court makes a different ruling than the Nevada Court's imminent adjudication on that issue, simply because any such adjudication could not occur until well after the Nevada Court has decided the issue." (Opp. at p. 5). While that may be true, the court is not willing to risk that it may not be true. "Granting a stay in a case where the issues in two actions are substantially identical is a matter addressed to the sound discretion of the trial court. In exercising its discretion the court should consider the importance of . . . avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider . . . the stage to which the proceedings in the other court have already advanced." <i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal. 2d 738, 746-747. Based on the foregoing, this litigation is STAYED until further order of this court. The case management conference is VACATED. The court sets a status conference regarding the stay for August 28, 2026 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are order to file a joint statement addressing the Nevada action. Plaintiffs shall give notice of this ruling.
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59.	Alexander v. E Mortgage Capital, Inc. 2023-01350484	#59 Defendant E Mortgage Capital, Inc.'s Motion for Summary Judgment is DENIED. Defendant E Mortgage Capital, Inc.'s Motion for Summary Adjudication is GRANTED Issues 10 and 11 and DENIED as to Issues 1, 2, 3, 4, 5, 6, 7, 8, and 9. A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) A cause of action "cannot be established" if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action "cannot be established" by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (1995) 25 Cal.4th at 854-55) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific